

Shree Badri Kedar Papers Private Limited v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · WRIT - C No. - 6857 of 2022 · **Disposed without merits; liberty to file Para 6.5 objection**

HEADNOTE

A writ challenging a demand of Rs. 4,34,51,768 and the consequential recovery was disposed of without any opinion on merits. The consumer was left at liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided in accordance with law, preferably within four weeks thereafter, after hearing. Coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Shree Badri Kedar Papers Private Limited challenged recovery by the Power Distribution Corporation of Rs. 4,34,51,768 with collection charges. It sought quashing of the demand notice dated 8 November 2019, the bill dated 8 January 2020 and the recovery citation dated 3 February 2020, and a direction to revise its electricity bills and issue a fresh correct bill. Counsel for the licensee stated on instructions that an objection to the demand could be filed and decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to a disputed electricity demand as the remedy in place of a writ on merits

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks, along with a certified copy of the order. If the objection is submitted within that period, respondent No. 3 shall decide it in accordance with law, expeditiously, preferably within the next four weeks, after affording a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ against the demand and recovery was disposed of without a decision on merits, leaving the consumer to file an objection under Para 6.5 before the distribution licensee, to be decided in accordance with law after hearing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand notice, bill and recovery citation were not examined in the writ; Para 6.5 was treated as the remedy for that dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 8 NOVEMBER 2019, THE BILL DATED 8 JANUARY 2020, THE RECOVERY CITATION DATED 3 FEBRUARY 2020, AND THE SUM OF RS. 4,34,51,768

The Court declined to express any opinion on the merits and left the objection to be decided by respondent No. 3 under Para 6.5. ¶ 1

